

Reservations & Employment

Verbatim excerpts from official Indian government sources. Each excerpt is cited with source document, URL, and page number. No content is paraphrased.

Source list:

R3.1 DoPT OM on Reservation for PwBDs -- *DoPT* (unavailable (download or extraction failed))
<https://dopt.gov.in/sites/default/files/OM-Reservation-PwBDs.pdf>

R3.2 DoPT Brochure Ch. 8 -- Reservation in Direct Recruitment -- *DoPT* (unavailable (download or extraction failed))
<https://dopt.gov.in/sites/default/files/ch-08.pdf>

R3.3 DoPT Brochure Ch. 23 -- Service matters of PwBD employees -- *DoPT* (unavailable (download or extraction failed))
<https://dopt.gov.in/sites/default/files/ch-23.pdf>

R3.4 Pathways to Access (Part III) -- Employment Rights of PwDs -- *DEPwD* (included)
<https://cdnbbsr.s3waas.gov.in/s3e58aea67b01fa747687f038dfde066f6/uploads/2024/12/202412021109053110.pdf>

R3.4 -- Pathways to Access (Part III) -- Employment Rights of PwDs

Source: DEPwD | URL:

<https://cdnbbsr.s3waas.gov.in/s3e58aea67b01fa747687f038dfde066f6/uploads/2024/12/202412021109053110.pdf>

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Government of India

Ministry of Social Justice and Empowerment

Department of Empowerment of Persons with Disabilities (Divyangjan)

PATHWAYS

TO

ACCESS

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Compilation of summaries of CAT decisions and important orders/circulars/notifications of the Government of India relating of service matters of persons with disabilities

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Pathways to Access (Part III) - Rights of Persons with Disabilities related to Employment

List of Abbreviations:

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CAT: Central Administrative Tribunal

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CCS: Central Civil Services

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CPSEs: Central Public Sector Enterprises

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DEPWD: Department of Empowerment of Persons with Disabilities (Divyangjan), Ministry of Social Justice and Empowerment, Government of India

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DoE: Department of Expenditure, Ministry of Finance, Government of India

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DoPE: Department of Public Enterprises, Ministry of Finance, Government of India

•

DoPPW: Department of Pension and Pensioners' Welfare, Ministry of Personnel, Public Grievances and Pensions, Government of India

•

DoPT: Department of Personnel and Training, Ministry of Personnel, Public Grievances and Pensions, Government of India

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M.A.: Miscellaneous Application

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NPS: National Pension System

•

O.A.: Original Application

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O.M.: Office Memorandum

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PWD Act, 1995: Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995

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RPWDA: Rights of Persons with Disabilities Act, 2016

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RPWDR: Rights of Persons with Disabilities Rules, 2017

Framework & Approach:

This resource document provides a collated, summarised understanding and analysis of the law, and the efforts made towards realising the rights

and provisions pertaining to the employment of persons with disabilities. For context, a brief overview of the relevant provisions of the RPWDA,

that guarantee rights to persons with disabilities with respect to their employment, is provided in the section below. Specifically, this compilation

contains orders/circulars/notifications of the DoE, DoPE, DoPPW, DoPT and CAT which have been issued in pursuance to the provisions of the

RPWDA. As such, the orders/circular/notifications primarily concern employees in the public sector and cover

rights/entitlement/benefits/concessions provided to Government employees with disabilities.

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The orders/circulars/notifications were included based on their evaluation against the following criteria:

a)

The order/circular/notification of the relevant Department substantially details or clarifies the scope of a right/entitlement/benefit/concession provided to an employee with disability.

b)

The order/circular/notification of the relevant Department has been issued to implement such a right/entitlement/benefit/concession provided to an employee with disability.

Only those orders which meet one or both of the aforesaid criteria have been included in the present document.

This document has been prepared in plain English with due care to ensure that their essence is not compromised. The orders were identified

through the website of:

a) DoE (

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<https://doe.gov.in/>

b) DoPE (

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<https://dpe.gov.in/>

c) DoPPW (

)

<https://doppw.gov.in/en>

d) DoPT (

)

<https://dopt.gov.in/>

In addition to the above, since the orders of the CAT were not readily searchable/accessible on their website (<https://cgat.gov.in/>), the relevant

orders of the CAT were identified by way of a case law search conducted through a reliable online

database of judgements and orders. If readers wish to obtain any additional information about the orders of the CAT mentioned in this compilation, including their compliance, implementation status, appeal status, etc., they are requested to verify the same from the relevant primary sources (the website of the CAT - <https://cgat.gov.in/>).

The particulars of the order/circular/notification are provided in the table below, and are hyperlinked for the convenience of the reader, to the document containing that order/circular/notification on the website of the relevant authority (except for orders of the CAT, for which a separate disclaimer has been provided under the section summarising those orders). Further, to allow easy navigation for readers interested in knowing the position of law on specific rights, entitlements, benefits, allowances or concessions, a set of tags for each entry is provided in the fourth column of the database. Appropriate tags have been identified for each entry by taking into account the specific employment related right/benefit/entitlement/concession that the order/circular/notification relates to.

Brief Overview of RPWDA framework:

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The relevant orders/circulars/notifications included in this compilation primarily deal with provisions of the RPWDA and RPWDR relating to the employment of persons with disabilities. These include specific provisions which aim to ensure equality, non-discrimination, and the protection of rights for persons with disabilities in employment, as provided below:

Non-discrimination in Employment (Section 20 of the RPWDA):

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No government establishment can discriminate against persons with disabilities in matters related to employment.

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Government establishments must provide reasonable accommodation and ensure a barrier-free environment for employees with disabilities.

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Promotion cannot be denied to an employee solely on the basis of their disability.

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If an employee acquires a disability during service and is found unsuitable for their current post, they must be reassigned to a suitable position with the same pay and benefits. If no suitable post is available, the employee can be retained in a supernumerary post until retirement.

Further, the Rule 3(2) of the RPWDR requires the head of a Government establishment or Private establishment with 20 or more employees to act

on complaints of discrimination on the grounds of disability by, either taking action under the RPWDA or providing a written explanation justifying the act or omission as a proportionate means to achieve a legitimate aim.

Equal Opportunity Policy (Section 21 of the RPWDA):

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Every establishment must have an equal opportunity policy that promotes inclusiveness in employment for persons with disabilities.

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The policy should be registered with either the Chief Commissioner or the State Commissioner for Persons with Disabilities.

Further, as per Rule 8(3) of the RPWD, equal opportunity policies for private establishments with 20 or more employees and all Government establishments must include: (a) facilities for persons with disabilities to perform their duties, (b) a list of suitable posts, (c) selection, training, transfer, and promotion processes, (d) provisions for assistive devices and accessibility, and (e) the appointment of a liaison officer to oversee disability recruitment.

Maintenance of Employment Records (Section 22 of the RPWDA):

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Establishments are required to maintain records of employees with disabilities, including details about employment, facilities provided, and other relevant information.

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These records must be available for inspection by authorised personnel.

3

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Grievance Redressal (Section 23 of the RPWDA):

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Every government establishment must appoint a Grievance Redressal Officer to handle complaints related to discrimination towards persons with disabilities in employment.

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If a complaint is not resolved satisfactorily, the aggrieved person can approach the District-Level Committee on disability.

Identification of Posts for Reservation (Section 33 of the RPWDA):

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The appropriate government is responsible for identifying posts in government establishments that can be reserved for persons with benchmark disabilities.

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An expert committee, with representatives of persons with benchmark disabilities, must be constituted to assist with identifying such posts.

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A periodic review of these identified posts must be conducted every three years.

Reservation in Employment (Section 34 of the RPWDA):

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Government establishments are required to reserve at least 4% of vacancies for persons with benchmark disabilities. This reservation is further divided based on the types of disabilities.

-

If vacancies cannot be filled in a recruitment year due to non-availability of suitable candidates, the vacancy can be carried forward to the next year. If a suitable candidate is still not available, the post can be filled by interchanging categories of disabilities or by appointing a non-disabled person as a last resort.

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Relaxation in the upper age limit may also be provided for persons with benchmark disabilities.

Additionally, Section 35 of the RPWDA provides incentives to employers in the private sector to employ at least 5% of their workforce from

persons with benchmark disabilities.

Disclaimers:

1. This compilation is for general informational purposes only and is not intended to serve as an official record of any such

orders/circulars/notifications. If readers wish to obtain any further information about the

orders/circulars/notifications mentioned in this

compilation, they are requested to verify the same from the relevant primary sources.

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2. The information contained in this compilation is taken from the websites of the DoE, DoPE, DoPPW, DoPT and a reliable online database for

CAT, published and readily available, as on 31 August 2024. Further developments concerning the

orders/circulars/notifications mentioned, as

well as orders/circulars/notifications which may be dated 31 August 2024 (or a date prior to the said date),

but were published on the said

website subsequent to 31 August 2024 have not been incorporated in this compilation.

3. Since the RPWDA came into force in April 2017, replacing the PWD Act, 1995, and reflecting India's updated international commitments

under the United Nations Convention on the Rights of Persons with Disabilities, this compilation includes

orders/circulars/notifications which

were issued between April 2017 and 31 August 2024, and were available as on 31 August 2024. However,

exceptions have been made for any

orders/circulars/notifications issued prior to April 2017, i.e., during the older regime of the PWD Act, 1995,

that remain legally valid and

enforceable under the RPWDA.

4. For the purpose of filtering relevant orders/circulars/notifications pertaining to the rights of persons with disabilities, only those

orders/circulars/notifications have been included in the compilation which deal with substantive rights,

entitlements, benefits, allowances or

concessions for persons with disabilities. Orders/circulars/notifications which may be valid only for a short

period in terms of their scope and

application (such as orders identifying relevant posts in specific departments for reservation for persons

with disabilities, or orders advertising

for hiring of persons with disabilities in such departments) have not been included in this compilation.

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Compilation of orders/circulars/notifications on the rights of persons with disabilities related to employment

A) Department of Personnel and Training (DoPT)

The DoPT is the coordinating agency of the Government of India responsible for personnel matters,

including recruitment, training, career

development, and staff welfare. It formulates policies and ensures compliance across ministries on service conditions, postings, and

deputations for Central Government employees (including employees of CPSEs). With respect to persons

with disabilities, the DoPT ensures

the implementation of reservation policies, promotes equal opportunities, and facilitates non-discriminatory employment practices within

government jobs, aligning with its broader mandate of personnel management.

S.No.

O.M./Order No.

Right/Provision

Tags

1.

No.DOPT-17144558

40135 dated 30 April

2024

Leave Travel Concession scheme is a concessional travel facility for Government employees to visit their hometown or any place in India. The travel expenses of the employees and their eligible family members are borne by the relevant Government. The Leave Travel Concession facility is available only for journeys undertaken in vehicles operated by the Government or any corporation in the public sector run by the Central or State Government or a local body.

Taking into account that employees with disabilities are often unable to utilise authorised modes of transport, they are offered a concession while availing the scheme. The use of personal/hired vehicles for the journey on account of a disability of the Government employee or their dependent family member is permitted, and such employees are eligible to receive reimbursement for their expenses on undertaking such a journey.

The O.M. references the previous O.M. issued by the DoPT on this matter O.M. No. 31011/3/2009-Estt.(A) dated 28 October 2009.

Travel Concession,

Reimbursement for

Travel

2.

No.DQPT-17120309

This O.M. is a compilation of instructions issued by the DoPT on various

Women with

6

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94647 dated 2 April

2024

allowances applicable to Central Government Employees.

One such allowance relevant to persons with disabilities relates to grants for child care support to women employees with disabilities, especially when they have children with disabilities. Such employees are eligible to receive a special allowance of INR 3,000 per month for child care. The amount of the allowance is revised from time to time, based on the revisions to dearness allowance and pay structures for such employees.

The allowance is payable from the time of the child's birth till the child is two years old, and is applicable to a maximum of two eldest surviving children.

The O.M. references the previous O.M. issued by the DoPT on this matter OM No: A-27012/03/2017-Estt.(AL) dated 16 August 2017.

Disabilities, Child

Care Allowance

3.

No.36011/1/2022-Es

tt(Res-I) dated 28

March 2024

This O.M. is a compilation of instructions issued by DoPT regarding reservation in appointments to posts and services under the Central Government, and concessions/relaxations extended to persons with benchmark disabilities.

The O.M. states that four percent of the total number of vacancies to be filled up by direct recruitment, in the cadre strength in each group of posts i.e. Groups A, B and C shall be reserved for persons with benchmark disabilities, in line with the RPWDA.

The O.M. further clarifies which disabilities are eligible to apply for these reserved posts, how vacancies are to be calculated for the reserved posts, requirements for a person with benchmark disabilities to apply to these posts, maintenance of a register of complaints etc.

The O.M. also discusses the reservation in promotion for persons with benchmark Reservation in

Central Government

Posts, Reservation in

Promotions

7

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disabilities, and reiterates the provision in Section 20(3) of the RPWDA which states that no promotion shall be denied to a person merely on the ground of disability. It clarifies how posts are to be identified for reservation, how vacancies are computed, horizontal reservation, reporting on filling of vacancies etc.

4.

No.DQPT-17109219

30511 dated 14

March 2024

This O.M. announces the launch of the PM-DAKSH-DEPWD digital platform by the DEPWD. This online portal serves as a comprehensive resource for the multifaceted employment needs for persons with disabilities, training organisations, as well as employers and job aggregators.

All Ministries and Departments are instructed to disseminate information about the portal within their offices, including subordinate and attached offices, CPSEs, and autonomous bodies under their administrative control.

PM-DAKSH-DEPWD,

Employment Portal

5.

No. 36035/44/202

3-Estt(Res-I 1) dated 2

February 2024

This O.M. outlines several guidelines aimed at facilitating the rights and welfare of persons with disabilities who are employed by the Government of India. These guidelines aim to create an inclusive and supportive environment for government employees with disabilities, ensuring that their rights are upheld and that they have access to the necessary resources to perform their duties effectively. This includes:

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Job Identification and Retention: Government departments are required to identify suitable jobs for persons with disabilities, allowing them to continue in these roles without facing unnecessary restrictions.

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Training and Skill Development: Induction training for persons with disabilities should be conducted alongside other employees. Job-specific training, including post-recruitment and pre-promotion training, should be inclusive, with tailored modules as necessary.

-

Assistive Devices: Government offices must provide persons with disabilities with assistive devices such as high-tech aids, software, and special furniture as

Inclusive Work

Environment,

Reasonable

Accommodations

8

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needed, either by supplying them or reimbursing costs.

-

Barrier-Free Work Environment: Workplaces must be accessible to persons with disabilities, with modifications like Braille signage, audio outputs in lifts, and colour contrast for employees with low vision. This aims to ensure ease of movement and accessibility in all government offices.

-

Government Accommodation: Priority should be given to persons with disabilities for accessible government housing, particularly on the ground floor, and existing accommodations should be renovated for accessibility.

-

Grievance Redressal: Special grievance redressal mechanisms should be established in each department to address the concerns of persons with disabilities. This includes appointing Liaison Officers familiar with disability issues to ensure compliance with disability-related matters.

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Leave Provisions: Persons with disabilities are entitled to special casual leave for disability-related matters, including four days per year for personal disability requirements and ten days for participating in disability-related events such as conferences or workshops.

-

Transfer and Posting Preferences: Persons with disabilities should be exempt from routine rotational transfers, and where feasible, they should be retained in their current roles. When transfers are necessary, preference should be given to postings that accommodate their disability.

-

Exemption for Caregivers: Government employees who are primary caregivers for dependents with disabilities are exempt from routine transfers, ensuring stability in their roles while caring for family members with disabilities.

All Government Ministries/Departments are instructed to inform appointing authorities of these guidelines and ensure compliance, including the DoPE which should implement them in CPSEs.

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6.

No.

36012/1/2020-Estt.

(Res-II), dated 26

April 2023

The O.M. addresses the implementation of the Supreme Court of India's order in the case of Siddharaju v. State of Karnataka (M. A. No. 2171 of 2020 in C.A. No. 1567 of 2017) regarding reservation in promotions for persons with benchmark disabilities, under Section 34 of the RPWDA. The DoPT has issued guidelines on the implementation of the same (O.M. No.36012/1/2020-Estt (Res.-II), dated 17 May 2022). However some contempt petitions and court orders predate this directive and may not be in line with the DoPT guidelines.

Accordingly, all Ministries, Departments, CPSEs, and autonomous bodies are instructed to ensure compliance with the order of the Supreme Court of India and the DoPT guidelines, related to reservations for persons with benchmark disabilities. If any difficulties arise in implementing these orders, they must consult the Department of Legal Affairs and file an affidavit within the given time frame by the Supreme Court of India. The O.M. also reiterates the importance of following established procedures for handling court cases, ensuring consistent responses across departments.

Implementation of
the RPWDA,

Reservations in

Promotions

7.

No. DO PT-16698942

87310 dated 1

December 2022

This O.M. consolidates the rules related to premature retirement and the Voluntary Retirement Scheme for government employees, issued by the DoPT. It highlights that if a government employee acquires a disability and submits a notice for voluntary retirement, they must be informed of their rights under Section 20 of the RPWDA. This section ensures that employees who acquire a disability can continue in service with the same pay scale and benefits. If the employee, after being advised of this option, chooses not to withdraw their retirement notice, the request for voluntary retirement may be processed.

Voluntary

Retirement,

Non-discrimination in

Employment

8.

No.DOPT-16696183

25007 dated 28

November 2022

This O.M. consolidates all relevant instructions regarding exemptions from passing the Typewriting Test for Lower Division Clerks who do not belong to the Central Secretariat Clerical Service. The document is designed to serve as a

Typewriting Test

Exemption, Physical

Disability

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comprehensive guide, eliminating the need to refer to older O.M.s. Key provisions for persons with disabilities include an exemption for 'physically handicapped persons' (now persons with disabilities) from passing the Typewriting Test for Lower Division Clerks (including tests conducted on computers), as long as they are otherwise qualified for clerical posts and are certified by a Medical Board or Civil Surgeon as being unable to type. The term 'physically handicapped persons' does not cover those who are visually impaired or hearing impaired, but covers only those whose physical disability permanently prevents them from typing.

This O.M. consolidates the instructions in F. No. 14020/2/91-Estt.D dated 29 September 1992; and F. No. 14020/1/2014-Estt.D dated 22 April 2015.

9.

No.DOPT-16696971

76669 dated 2

November 2022

The O.M. outlines the Rotational Transfer Policy for the Central Secretariat Service.

With respect to persons with disabilities, it addresses the unique challenges faced by officers with disabilities in terms of mobility and daily commute. It acknowledges that factors such as the location of public transportation, residential areas, and the means of conveyance can significantly impact their ability to perform official duties. As a result, transfer and posting requests from such officers will be considered on a case-by-case basis, to accommodate their specific needs and taking these challenges into account.

Rotational Transfer

Policy, Transfer,

Posting, Reasonable

Accommodations

10.

No.DOPT-16675455

96919 dated 23

September 2022

This O.M. consolidates instructions from the DoPT regarding the handling of representations on service matters from government servants and the process for government servants to approach legal recourse if necessary.

The O.M. clarifies that while representations on service matters should typically Grievance Redressal,

Representations on

Service Matters

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be submitted by government servants themselves, an exemption is provided for persons with disabilities. If a government servant with a disability is unable to submit a representation, their relatives may submit the representation on their behalf. This exemption applies specifically in cases where the government servant is unable to submit the representation themselves due to their disability.

The O.M. references the previous O.M. issued by the DoPT on this matter O.M.

No: 25/21/63-Ests.(A) dated 19 September 1963.

11.

No.DOPT-16675693

93892 dated 6

September 2022

The O.M. outlines the age relaxation provisions for persons with disabilities seeking direct recruitment to CCS or Civil Posts. It consolidates the instructions in O.M. No. 15012//2003-Estt.(D) dated 29 June 2015 and O.M.

No.36035/2/2017-Estt(Res) dated 15 January 2018. It provides the following instructions:

-

Age relaxation of 10 years in upper age limit shall be allowed for persons with disabilities (15 years for Scheduled Caste/Scheduled Tribe candidates with disabilities and 13 years for Other Backward Class candidates with disabilities), subject to the maximum age of the applicant on the crucial date not exceeding 56 years.

-

The applicant should have minimum 40% of any of the following disabilities:

(a) blindness or low vision; (b) deaf and hard of hearing; (c) locomotor disability including cerebral palsy, leprosy cured, dwarfism, acid attack victims and muscular dystrophy; (d) Autism, intellectual disability, specific learning disability and mental illness; (e) multiple disabilities from amongst persons under clauses (a) to (d) including deaf-blindness.

-

The age concession shall be admissible irrespective of the post being reserved for persons with disabilities or not, provided that the post is identified as suitable for the relevant category of disability. This provision is not applicable to Civil Services Examinations.

Age Relaxation in

CCS, Defence

Services Personnel

with Disability

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In case a person with disability is entitled to age concession by virtue of being a Central Government employee, concession will be admissible either as a 'person with disability' or as a 'Central Government employee' whichever may be more beneficial to them. This provision is not applicable to Civil Services Examinations.

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These provisions are not applicable to posts/services for which other specific provisions regarding age relaxation are made by notification.

Further, this O.M. also provides instructions for age-limit relaxation for Disabled Defence Services personnel. It consolidates the instructions in O.M. No. 14/42/65-Estt(D) dated 29 March 1966; O.M. No.13/35/71-Estt.(C) dated 24 December 1971; O.M. No. 15012/2/2010-Estt.(D) dated 27 March 2012; and O.M. No. 39016/5/1981-Estt.(C) dated 21 February 1981. It states as follows:

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Upper age limit relaxation up to 45 years (50 years for Scheduled Caste/Scheduled Tribe candidates) for Group C posts filled through

Employment Exchange and Group A and B posts filled outside UPSC
Competitive Examinations.

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Relaxation of age limit by up to 3 years (or 8 years for Scheduled Caste/Scheduled Tribe candidates) for competitive examinations. However, Disabled Defence Services personnel will not have more attempts than the maximum allowed for general candidates.

12.

No.

B-11011/I/2016-Ad-

UI elated 11 March

2016

This circular contains a Scheme for providing facilities to employees with disabilities of the DoPT. The objective of the Scheme is to enable and empower persons with disabilities in DoPT by providing certain additional facilities to help them discharge their duties more conveniently and effectively. Such facilities include wheelchairs (motorised, if required), special furniture, hearing aids with battery, low vision aids, smart canes, special software/computers, Braille signage

Employees with

Disabilities in DoPT

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near lift area, toilets, canteen, fire, exit etc., sound in biometric attendance system and induction/job specific training.

B) Central Administrative Tribunal (CAT)

The CAT was established under Article 323-A of the Constitution of India to adjudicate disputes related to recruitment and service conditions

of individuals appointed to public services under the control of the Government of India. It serves as a specialised judicial body, tasked to

provide speedy and effective justice in matters related to employment for Government employees, reducing the burden on regular courts and

offering simplified procedures for seeking grievance redressal.

With respect to persons with disabilities, the CAT ensures the enforcement of service conditions, rights, and protections afforded to them

under relevant laws, including the RPWDA, addressing issues related to recruitment, promotions, and discrimination. It plays a crucial role in

ensuring non-discrimination and equal opportunities in public sector employment for individuals with disabilities.

Disclaimer: The following compilation includes only those orders of the CAT that address rights, entitlements, benefits, allowances, or

concessions for persons with disabilities and that have not been overturned, modified or set aside on appeal by a higher court, including the

High Courts or the Supreme Court of India, as on 31 August 2024.

The orders of the CAT have been recovered from a reliable online database for judgements and orders of various courts in India. If readers wish

to obtain any additional information about the orders of the CAT mentioned in this compilation, including their compliance, implementation

status, appeal status, etc., they are requested to verify the same from the relevant primary sources (the website of the CAT -

<https://cgat.gov.in/>).

S.No.

Order no.

Summary of Judgement

Tags

1.

OANo. 1052 of 2023

G.K. Soti vs. The Union of India and Ors. (29.05.2024 - CAT - Allahabad):

MANU/CA/0900/2024

In this case, the applicant, currently working in a Group 'C' position, qualified

Railway Board, Medical

Examination, Promotions

for Persons with

Disabilities

14

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for promotion to a Group 'B' post (Assistant Commercial Manager) in the Commercial Department of the Railway Board. After successfully passing the written exam, the applicant underwent a medical examination, where he was declared unfit for promotion due to colour blindness. The applicant challenged the medical report, claiming the examination was not conducted by an eye specialist and referred to policies that allow for the promotion of persons with disabilities, including those with visual impairments.

The applicant argued that, as per the Railway Board's policies, the post was considered non-safety-related and therefore persons with disabilities should be eligible for promotion. The respondents relied on other rulings of the CAT, which stated that the post does involve safety-related duties and upheld the requirement for medical fitness.

The CAT, in its order, reiterated that certain posts within the Railway Board, including the current post, require fulfilment of medical standards for safety reasons. It was also noted that promotions cannot be denied due to disabilities unless the disability affects the person's ability to perform the job's higher functions. As such, the CAT dismissed the case, finding no reason to interfere with the medical report.

2.

O.A. No. 3188/2018

Sumit vs. Govt of NCT of Delhi and Ors. (17.05.2024 - CAT - Delhi):

MANU/CA/0833/2024

In this case, the applicant, an orthopaedic candidate with a disability (63% permanent impairment of the left elbow), was required to take a typewriting skill test as part of a recruitment process. Despite his disability, the applicant participated in the test due to not being informed about the possibility of exemption. After failing the test, the applicant discovered that 16 other

Typewriting Test

Exemption, Reasonable

Accommodations

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candidates with disabilities had been exempted from the skill test.

The applicant submitted multiple representations seeking exemption from the typing test, but the respondents argued that he had not presented the necessary disability certificate in time and did not apply for exemption before the test. The respondents contended that the applicant was negligent and sought relief only after the results were declared, which disqualified him from claiming exemption.

The CAT noted that the applicant was not informed about the exemption, and such provisions for persons with disabilities should not be denied on technical grounds. The Tribunal emphasised that the RPWDA supports reasonable accommodation, and the applicant's disability should have been considered for exemption from the typing test.

The order held that the applicant be granted exemption from the typing test, with notional seniority, but without consequential reliefs. The respondents were ordered to complete the necessary formalities within two months.

3.

O.A.No.

181/00102/2019

Sareena S.P. and Ors. vs. The Union Territory of Lakshadweep and Ors.

(16.02.2024 - CAT - Ernakulam): MANU/CA/0250/2024

In this case, the applicants are the mother and daughter (with 90% intellectual disability) of a deceased primary school teacher. The applicants are contesting the rejection of their application for compassionate appointment under the applicable scheme. The applicant's application for compassionate appointment was rejected due to not meeting the benchmark points required by the scheme.

The CAT held that the the applicants faced serious injustices due to Discrimination against

Persons with Disabilities

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administrative negligence and improper application of the compassionate appointment scheme and that respondents need to re-evaluate the applicants' application. The order noted significant lapses in the administration of the compassionate appointment scheme, including delayed processing of the application. The CAT also criticised the discrimination against disabled dependents. It directed that the provisions used to reject the applications be reconsidered, particularly in light of the principles of equality and reasonable accommodation for persons with disabilities.

4.

O.A. No. 1850/2017

Vempati Venkata Sai Seshagiri Rao vs. Railway Board and Ors. (22.04.2024 - CAT - Delhi): MANU/CA/0612/2024

In this order, the applicant, who successfully passed the Engineering Services Examination, and belongs to the category of persons with benchmark locomotor disability, faced issues related to medical fitness despite being listed in the merit list. Out of 609 advertised posts, 29 were reserved for persons with disabilities. The applicant's candidature was rejected due to being declared medically unfit by both the initial and Appellate Medical Boards.

The CAT held that the medical examination should have assessed his fitness according to his specific disability and the applicable reservation rules. The applicant's unfitness was assessed using general standards, which is inappropriate for individuals with disabilities who are entitled to specific accommodations. The order emphasised that the medical examination should have focused on whether the applicant's disability affected his ability to perform the duties of the specific post he was applying for. The CAT set aside Medical Examination,
Reservation in
Employment
17

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the reports from the Medical and Appellate Medical Boards, ruling that the applicant was wrongly declared unfit.

The decision underscores the necessity of fair and specific medical assessments for persons with disabilities, aligning with legal provisions and ensuring that reservation benefits are properly applied.

5.

OA No. 339/2022

Amit Yadav vs. Comptroller and Auditor General, New Delhi and Ors. (23.01.2023

- CAT - Delhi): MANU/CA/0151/2023

The applicant was diagnosed with obsessive-compulsive disorder and bipolar disorder. The applicant qualified the Combined Graduate Level Examination and was recommended for the Auditor position by the Staff Selection Commission. However, the respondent returned his dossier, claiming he was unsuitable for the role and suggesting he be reallocated to another department.

The CAT held that the respondent's decision was discriminatory and violated the RPWDA. The RPWDA mandates specific reservations for persons with benchmark disabilities. The Staff Selection Commission advertisement grouped various categories of disabilities under "Other Persons with Disabilities" without specifying posts for new categories like mental illness, leading to confusion.

The order emphasised that persons with bipolar disorder and similar conditions require appropriate workplace accommodations and professional support. It criticised the respondent's blanket declaration of the applicant as "unfit for all services," which undermines the purpose of the RPWDA.

Reservation in
Employment,
Discrimination
18

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The CAT ruled that the applicant's suitability should be reassessed by an Independent Medical Board specifically for the Auditor position. If deemed unsuitable, he must be offered an alternative appointment to a suitable post in another department, with protections for his pay and conditions.

6.

O.A. No.

170/01057/2019

Santhosha H. vs. Union of India and Ors. (17.04.2023 - CAT - Bangalore):
MANU/CA/0902/2023

The CAT addressed the case of an applicant with over 40% hearing impairment who challenged the findings of medical examinations related to his eligibility for the Civil Services Examination. The applicant had a disability certificate from the All India Institute of Speech and Hearing, Mysore. However, during subsequent medical evaluations, the Central Standing Medical Board CSMB at Safdarjung Hospital and the Appellate Medical Board at AI IMS, New Delhi, assessed his hearing impairment as less than 40%. The Appellate Medical Board's decision was challenged by the applicant, who argued that the process was flawed.

The CAT found that the procedures followed were in line with the regulations, and the medical assessments by AIIMS were deemed reliable. The applicant's higher disability percentage report was not considered relevant to the 2018 examination results. The CAT upheld the decisions of the medical boards and dismissed the applicant's challenge. The ruling underscores the importance of adhering to established procedures for disability assessments and the finality of medical board decisions in determining eligibility for reserved positions.

Disability Certification,
Civil Services
Examination

7.

O.A.No. 3057/2021

and M.A. No. 952/2023

Atul Ranjan vs. Union of India and Ors. (04.07.2023 - CAT - Delhi):
MANU/CA/1368/2023

Medical Evaluation, Civil
Services Examination

19

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The CAT addressed the petition by Mr. Atul Ranjan challenging the findings of the medical examination, related to his eligibility for reservation under the Persons with Benchmark Disability category in the Civil Services Examination 2020. He argued that he should be categorised under "Multiple Disabilities" due to his hearing impairment and locomotor disability. However, his medical evaluations classified him under "Locomotor Disability".

The AIIMS and Appellate Medical Boards concluded that Ranjan's disability was primarily locomotor and did not meet the criteria for speech disability or multiple disabilities. The percentage of his locomotor disability was recorded as 90%, but he was not considered under multiple disabilities as per the reports.

The CAT held that the AIIMS medical report was valid and had no illegality or arbitrariness in the findings. It noted that the applicant's grievance, although genuine, could not override the procedural rules governing medical assessments for 'Persons with Benchmark Disability' candidates. This decision reinforces the adherence to established procedures for disability assessments and the finality of medical board evaluations in determining eligibility for disability reservations in competitive examinations.

8.

O.A. No. 1788/2017

Geeta vs. Govt of N.C.T of Delhi and Ors. (19.04.2023 - CAT - Delhi):

MANU/CA/0846/2023

The applicant, a visually impaired individual, applied for the post of Assistant Teacher (Nursery) with the Municipal Corporation of Delhi (MCD) under the disability category. She had a 40% disability as per a certificate from AI IMS, Certification of Disability,

Employment

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however, her application was rejected based on an earlier certificate from Deen Dayal Upadhyay Hospital, which indicated a 35% disability.

The applicant contended that the new disability certificate was valid and should have been considered. She argued that visual impairment percentages can vary, and the older certificate may have been based on outdated or incorrect medical parameters. The CAT found that the respondents failed to properly consider the more recent disability certificate. The rules require compliance with the RPWDA and provisions for disability verification. It noted that disability conditions may change over time and the process should be more flexible. The order directed the respondents to form a new Medical Board.

9.

O.A. No. 1344/2023

Amzad vs. Northern Railway and Ors. (11.10.2023 - CAT - Delhi):

MANU/CA/1852/2023

The CAT addressed a case concerning the reservation process for the post of Senior Clerk cum Typist/Comm'l Clerk. The issue arose when a written examination was planned to fill six positions, but only five candidates holding the post of Clerk Cum Typist were deemed eligible. One of these positions was reserved for a Scheduled Caste candidate who was also required to be a person with benchmark disability.

The applicant, a person with benchmark disability, was unfairly excluded from consideration because the reservation was specifically for an SC candidate with a disability, despite the applicant's eligibility. This was contrary to the RPWDA which mandates that reservations for persons with benchmark disabilities should be treated as a separate category.

Reservation for Persons

with Benchmark

Disabilities

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The CAT found that this approach violated the RPWDA, which clearly stipulates that persons with benchmark disabilities should be considered a distinct category for reservation purposes. The initial process, which had included the applicant, was improperly modified by reassigning the reservation to Scheduled Caste candidate.

The CAT's decision was to mandate a new process. This new process must

adhere strictly to the RPWDA and relevant rules, ensuring that reservations for persons with benchmark disabilities are treated independently from other categories. The CAT directed that such reservations be applied directly and that category assignments be based solely on merit following the selection.

10. O.A. No.
180/00403/2020

P.K. Sadanandan vs. Union of India and Ors. (04.01.2022 - CAT - Madras):
MANU/CA/0063/2022

The CAT addressed the case of a postal employee with a disability, who was denied promotions despite being entitled to benefits under the RPWDA. The applicant, who had been receiving a Conveyance Allowance for his orthopaedic disability since 1985, argued that his disability status should have entitled him to promotions under the persons with disabilities category. Despite his long service, he was promoted after almost four decades of service, when he should have been promoted much earlier under the quota. The applicant contended that the Department of Posts did not maintain a proper roster to track reservations for persons with disabilities, as mandated by government guidelines. The respondents argued that the applicant was initially appointed on compassionate grounds, not under the persons with disabilities category, and thus was not entitled to promotion benefits under the RPWDA.

Reservation in
Promotion
22

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However, the CAT rejected this argument, citing the Supreme Court's ruling in *Rajeev Kumar Gupta v. Union of India*, which states that persons with disabilities are entitled to benefits under the RPWDA regardless of the mode of recruitment. It held that the Department of Posts had failed to follow the guidelines for maintaining a roster for reservations, which led to the applicant being denied promotions he was entitled to. The CAT directed the Department of Posts to correct this oversight by implementing the reservation guidelines and promoting the applicant retrospectively, with notional fixation of salary and pension adjustments.

11. OA/100/3754/2015
Manish vs. Delhi Transport Corporation, (11.02.2022 - CAT - New Delhi)
MANU/CA/0128/2020

The applicant, who was a driver with the Delhi Transport Corporation (DTC), contested his termination following a medical declaration of unfitness due to an accident. The court determined that employees on probation who develop a disability are entitled to protections under Section 47 of the PWD Act, 1995. This ruling affirms that disabled employees cannot be dismissed and should be reassigned to an alternative position with equivalent pay and benefits.

Unlawful Termination,
Non-discrimination in
Employment

12. O.A. No. 60/164/2019
Ashwani Kumar vs. Union of India and Ors., (20.02.2020 - CAT - Chandigarh)
MANU/CA/0157/2020

The applicant, a person with 100% visual impairment, sought a directive for the grant of family pension as a child with disability of a Government employee, under the Railway Services (Pension) Rules, 1993. The respondent authorities refused his claim, arguing that he was not eligible for the pension as he was over 25 years of age.

Family Pension, Eligibility

Criteria

23

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The CAT reviewed the case under Rule 75(6) of the Railway Services (Pension) Rules, 1993, which allows family pension for life to children with disabilities of employees, if they are unable to earn a livelihood. The CAT found that the applicant's 100% blindness qualified him as a child with disability, irrespective of his age.

13. O.A. No. 60/547/2018
and 60/1988/2019

Rakesh Kumar vs. The Northern Railways and Ors., (20.02.2020 - CAT - Chandigarh) MANU/CA/0228/2020

The plaintiff, a 100% disabled individual, was denied family pension on the grounds of his "Bilateral Profound Sensory-Neural Hearing Loss" and his marital status. However, Rule 75(6) of the Railway Services (Pension) Rules, 1993, provides that while unmarried sons and unmarried, widowed, or divorced daughters are eligible for family pension only until they marry or remarry, this rule does not apply to children with disabilities, who remain eligible even if they marry, provided they are unable to earn a living.

The CAT found that the Railways Board's denial was inconsistent with Rule 75(6)(b) of the Railway Services (Pension) Rules, 1993, which entitles dependents who have a disability to a pension if they cannot earn a livelihood. The CAT upheld that a dependent with disability should receive a pension regardless of their marital status or the type of their disability, as long as they are unable to earn a living.

Marital Status, Family

Pension

14. O.A No.

040/00323/2016

Manas Ranjan Mohapatro vs. The Union of India and Ors., (06.03.2020 - CAT - Guwahati) MANU/CA/0244/2020

The CAT addressed the denial of promotion to the applicant on the grounds of a disability. Despite securing the 3rd position in the Limited Departmental Competitive Examination for the promotion to Assistant Engineer Group B, Non-discrimination,

Promotion in

Employment

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the applicant's promotion was nullified because of his visual impairment (colour vision deficiency).

The Chief Medical Officer had recommended that the applicant be considered

for specific posts within the non-safety category, which would accommodate his condition under relaxed medical standards. His promotion was rejected on the grounds that accommodating him would be contrary to safety norms and not in the best interest of the Railway Administration due to his long residual service.

The CAT found this reasoning inadequate, noting that the applicant's long service should have been an asset, not a liability. The CAT set aside the rejection letters and directed the authorities to reconsider Mohapatro's promotion, ensuring it aligns with his medical fitness for the specified posts.

15. O.A. No.

210/0533/2014

Ramesh Kallappa Kiwande vs. The General Manager (P), South Central Railway and Ors., (05.02.2020 - CAT - Mumbai) MANU/CA/0357/2020

The applicant, who sustained a severe injury in 2003, was declared unfit for duty and discharged in 2004. He argued that the Railway Board's refusal to grant him an 'invalid pension' under Rule 55 of Railway Service (Pension) Rules, 1993 and the creation of a supernumerary post was contrary to Section 47 of the PWD Act, 1995.

The CAT held that the Railway Board's instructions were inconsistent with the PWD Act, 1995 which mandates supernumerary posts for employees declared unfit but still needing alternative employment. The CAT directed the Railway to grant the applicant supernumerary status from the date of his discharge, ensure all due payments, and provide immediate financial assistance.

Non-discrimination,

Injury during

Employment

25

-- p.27 --

16. O.A. No. 4467/2017

Sudhir Kumar vs. Govt, of NCTD and Ors. (18/07/2019, CAT- Delhi):
MANU/CA/0443/2019

The applicant, who has a visual disability, argued that he should receive a double transport allowance due to his condition. Initially, his disability was reported as 75%, but a re-examination reduced his disability to 40%. However it was noted that the applicant did not cooperate during the medical re-examination, and the applicant complained of mistreatment.

The CAT held that the reduction of his transport allowance was effectuated only because of the applicant's refusal to undergo further medical re-examinations. His claim of harassment was rejected, and it was determined that the decision to pay him the normal rate was correct, until he agreed to undergo a proper medical examination. The case was dismissed, but the respondent was directed to adjust the travel allowance based on future medical evaluations.

Medical Examination,

Disability Certificate,

Travel Allowance

17. O.A. No. 1763/2015

Rajesh Kumar Meena vs. Ministry of Railways and Ors. (31.10.2019 - CAT- New Delhi) MANU/CA/0904/2019

The applicant, who had applied for a post in the Railway Board, was declared unfit for the post by the Railway Medical Board due to the amputation of two fingers. Although a government hospital certified him as having 5% disability, but physically fit for the job, his application was still rejected.

The CAT held that if an employee has a bodily infirmity or disability which does not affect the performance of day to day duties, the employees can be considered for the appointment.

Non-discrimination in

Employment

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18. O.A. No.

180/00100/2015

Sudhir Kumar B. vs. Union of India and Ors. (18.07.2019, CAT- Ernakulam) :

MANU/CA/0041/2019

The applicant, a Trained Graduate Teacher, developed a 75% visual disability, certified by a Medical Authority, and was granted double transport allowance. However, following complaints, a fact-finding inquiry questioned the legitimacy of the certificate, leading to a re-examination that the applicant allegedly evaded.

The Medical Authority later revised his disability to 40%. The respondent-department reduced his allowance and issued a warning, which the applicant contested in the CAT. The CAT found the applicant's refusal to cooperate with re-examination unjustified, dismissed his plea, and upheld the department's actions, allowing further disciplinary measures if necessary.

Valid Disability

Certificate, Travel

Allowance

19. O.A. No.

180/00140/2016

K. Rajendraprasad vs. Union of India and Ors. (23.01.2019, CAT- Ernakulam):

MANU/CA/0042/2019

In this case the applicant, grievously injured while on duty in 1998, was declared medically unfit and placed in a lower grade post without pay protection. He later learned that under the PWD Act, 1995, he was entitled to supernumerary status and full pay protection, which he had been denied. Despite his retirement in 2010, the applicant sought these benefits. The respondents rejected his claim due to delay. The Tribunal, referencing the Supreme Court's judgement in M.R. Gupta v. Union of India, held that the applicant's rights under the PWD Act, 1995 constituted a continuing cause of action. The CAT directed the respondents to grant the applicant all benefits under the PWD Act, 1995 including pensionary benefits, within three months.

Disability Entitlements,

Pension, Delay in

Application

27

-- p.29 --

20. O.ANos. 2233 and
2236/2017

Pradeep Kumar Shrivastava and Ors. Vs. Central Bureau of Investigation and Ors.
(08.02.2018, CAT- Delhi): MANU/CA/0078/2018

In this case, the applicant sought judicial intervention in the matter of his transfer on specified grounds i.e., mental illness of the applicant's child of 13 years (suffering from autism) and also his wife, who is suffering from schizophrenia.

The CAT held that different treatment shall be given to the applicant, since the transfer policy in question was meant for Government employees whose circumstances were normal and not extraordinary. In its order, the CAT discussed various provisions of the RPWDA, and held that shifting of the applicant would have an adverse impact on the child and wife of the applicant. The CAT concluded that the applicant has to be given different treatment than envisaged under the transfer policies of the respondents. The respondents had failed to take into consideration the circumstances mentioned by the applicant indicating disability of his child and spouse requiring special attention, care and high support. The CAT held that the decision of transfer in such a case is against public policy and the provisions of the RPWDA.

Transfer, Disability of
Family Members

21. O.A. No. 050/00465 of
2014

Ranjeet Kumar Vs. Union of India and Ors. (30.08.2017, CAT - Patna):
MANU/CA/0670/2017

The applicant challenged his forced retirement on the grounds of disability. He had worked in the position of Track Man in the Railway Board, but pursuant to a subsequent medical examination it was found that he was unfit and was retired without any alternate employment consideration.

Retirement, Invalid
Pension

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C) Department of Expenditure (DoE)

The CAT upheld the retirement and stated that once a railway employee is declared by a medical authority to be permanently incapacitated for further service, he has to retire from service (while being provided invalid pension), if alternate employment is not possible for him.

22. O.A. No. 279/2012

Hanuman Singh Vs. Union of India and Ors. (27.05.2016, CAT- Jodhpur):
MANU/CA/0549/2016

This case involved a Diesel Mechanic employed with the Railways Board. He was medically deemed unfit for employment due to low vision that he acquired during his service. He was placed in a lower post as a clerk and his pay was fixed according to relevant rules.

The CAT ruled that it is illegal to dispense with or reduce the rank of an employee who acquires a disability during his service. The pay scale and service benefits of such persons after acquiring disability is protected by Section 47 of the PWD Act, 1995 (corresponding to Section 20(4) of the RPWDA).

Non-discrimination in

Employment

The DoE is the nodal body responsible for overseeing public financial management in the Government of India, including state finances,

implementing recommendations of the Finance and Central Pay Commissions, and ensuring effective expenditure management across

Government Ministries and Departments. With respect to the employment of persons with disabilities, the DoE ensures that budgetary

provisions and policies are inclusive, aligning financial resources and expenditure policies to support the implementation of non-discriminatory

employment practices and welfare measures for employees with disabilities.

S.No.

O.M./Notification No.

Rights/Provisions

Tag

29

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1.

NO.21/1/2018-E.IIB

dated 15 September

2022

This O.M. contains a compendium of instructions on the grant of travel allowance at twice the normal rates for persons with disabilities employed in the central government. This consolidated master O.M. issued by the DoE supersedes all earlier instructions issued on this subject.

This transport allowance at double the normal rates can be availed by central government employees with benchmark disabilities, having a valid certificate of disability issued by the Certified Medical Authority. The O.M. specifies that the additional condition of recommendation of the concerned Head of Department of a government hospital has been done away with.

The rates of such transport allowances are determined and notified time to time by the DoE as per the recommendations of Central Pay Commissions.

Transport

Allowance,

Employee Benefits

2.

No.

24(35)/PF-I 1/2012

dated 3 April 2018

This O.M. modifies a previous O.M. issued by the DoE (O.M. No.

24(35)PF-11/2012 dated 5 August 2016) on the guidelines for formulation, appraisal and approval of Public Funded Plan Schemes and Projects.

Through this O.M., the DoE has amended the format for appraisal of schemes/projects in the guidelines to include a requirement to bring out any special interventions and measures proposed to meet the needs of persons with disabilities, including accessibility requirements under the RPWDA.

Publicly Funded Schemes

and Projects, Accessibility

3.

Manual_____ on
Procurement_____ of
Goods, Manual on
Procurement_____ of
Consultancy_____ and
Other Services, and

The DoE's Manuals on Procurement of Goods, Procurement of Consultancy and Other Services, and Procurement of Works were updated and amended in June 2022. The amended manuals mandate that procuring authorities are responsible for conducting public procurement in a way that prioritises accessibility for persons with disabilities.

Procurement,
Accessibility
30

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Manual
on
Procurement_____ of
Works, updated in
June 2022

D) Department of Pension & Pensioners' Welfare (DoPPW)

The DoPPW is the nodal department responsible for formulating policies regarding pensions and retirement benefits for Central Government employees governed by the CCS (Pension) Rules, 1972, and other related legislations. It also focuses on promoting the welfare of pensioners and provides a platform for addressing grievances related to pensions. With respect to persons with disabilities, the DoPPW ensures that policies related to pensions and retirement benefits are inclusive and accommodate the specific needs of Government employees with disabilities, ensuring equitable access to retirement benefits and welfare provisions. It plays a key role in addressing disability-related pension issues and ensuring non-discrimination in post-retirement benefits for pensioners with disabilities.

S. No.

O.M./Notification No.

Right/Provision

Tag

1.

No.-

57/03/2022-P&PW(B)/

8361(2) dated 28

October 2022

This O.M. discusses the pension entitlements on discharge from service on account of invalidation or disablement, available to Central Government employees covered under the NPS.

The O.M. reiterates the process for application for discharge from service on account of invalidation or disablement under Rule 16 and 17 of the CCS (Implementation of NPS) Rules, 2021. The DoPPW has directed all relevant government ministries and departments to train personnel dealing with the

pensionary benefits in that ministry or department and inform them about the procedures under the CCS (Implementation of NPS) Rules, 2021, in order to strictly implement the notified rules.

NPS, Pension Benefits

31

-- p.33 --

2.

No.-

57/03/2022-P&PW(B)/

8361 dated 26 October

2022

This O.M. clarifies and reiterates the options available to a Government employee to avail of a pension under various schemes, on discharge from service on account of invalidation or disablement.

Rule 10 of the CCS (Implementation of NPS) Rules, 2021, allows employees, at the time of joining service, the option to avail benefits under the NPS or CCS (Pension) Rules, 2021 or CCS (Extraordinary Pension) Rules, 1939 in the event of their death, disablement or invalidation during service. Existing Government employees covered under the NPS can also exercise this option to avail of pension under any one of the alternatives provided under Rule 10. The O.M. describes the process for Government employees to avail of the options for pension and directs all relevant government ministries and departments to inform personnel dealing with pension services about the available options for Government employees.

Pension Benefits,

Options for Pension

Schemes

3.

F.No.

I/I(I))-2022-P&PW(E)

dated 26 October 2022

(available at pg. no. 161)

This O.M. discusses the grant of family pension under the CCS (Pension) Rules, 2021 to a deceased Government employee's child or sibling with disability.

Rule 50 of the CCS (Pension) Rules, 2021 states that if the child or sibling of a deceased Government employee has a physical or mental disability and is not earning a livelihood, they are eligible to receive family pension benefits of the deceased employee for life.

This has been reiterated from a previous O.M. of the DoPPW (1/17/2019-P&PW(E) dated 8 February 2021), which amended the provisions of Rule 54 of the CCS (Pension) Rules, 1972. As per this, a child or sibling with disability is deemed to be not earning a livelihood if their overall income from sources

Family Pension, Child

with Disability, Sibling

with Disability

32

-- p.34 --

other than family pension is less than the entitled family pension and dearness relief.

The O.M. also clarifies that the family pension is available to a child or sibling of a deceased Government employee if:

-

The child or sibling has any disability covered under the RPWDA, and has a valid disability certificate;

-

The existence of the disability of the child or sibling predates the death of the Government employee or pensioner; and

-

The child or sibling is not earning a livelihood.

4.

1/4/2021-P&PW(E)

Part-1 dated 19 January

2022

In this O.M., the DoPPW reiterated that according to Rule 50(9)(h)(vii) of the CCS (Pension) Rules, 2021, in case a child of a Government employee with intellectual disability or mental illness is eligible to receive family pension, the family pension can be paid through a guardian nominated by the Government employee or the pensioner.

In case the Government employee has not nominated a guardian for their child during their lifetime, the guardian nominated by the spouse of such Government employee or family pensioner will be considered eligible to receive the family pension on behalf of the child with disability. The Guardianship Certificate issued under Section 14 of the National Trust Act, 1999 will also be accepted for nomination or appointment of guardian for grant of family pension.

The DoPPW has noticed that in some cases, the Pension Disbursing Banks have been demanding a guardianship certificate issued by a court of law for payment of family pension through a guardian for the child with disability.

However, it is clarified that no such guardianship certificate issued by a court Family Pension, Pension Disbursing Banks, Child with Disability

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of law is required as long as a guardian has been appointed in accordance with Rule 50(9)(h)(vii) of the CCS (Pension) Rules, 2021. Pension Disbursing Banks are directed to disburse the family pension in respect to such a child without delay.

This O.M. supersedes and reiterates the previous O.M. of the DoPPW on this matter, No.1/6/2020-P&PW (E dated 3 March 2020, states the process of co-authorization of children with a permanent disability in Pension Payment Orders for receiving the entitlement of family pension.

5.

1/3/2019-P&PW(F)

dated 1 January 2021

Through this O.M., the DoPPW clarifies that a Government employee with disability, appointed on or after 1 January 2004 and covered under the NPS, is

also be eligible to receive a lump sum compensation computed in under of Rule 9(3) of CCS (Extraordinary Pension) Rules 1939, if the disability is attributable to the Government service and the Government employee is retained in service post acquiring the disability.

The DoPPW clarified that previously, the entitlement of a lump sum compensation was available to a Government employee covered under the NPS, only if they were relieved from service due to a disability attributable to the Government service. This was stated in the DoPPW's O.M. No. 38/41/06-P&PW (A) dated 5 May 2009. However, the present O.M. amends the previous O.M. in order to extend the benefit of a lump sum compensation even to Government employees who were retained in service post acquiring the disability.

Lump sum
Compensation, Retention
in Government Service
6.

NO.1/7/2017-P&PW (F)
dated 28 July 2020

The O.M. clarifies the process for computation of pension for any Central Government employee who was boarded out due to an injury/disability attributable to the Government service, prior to 1 January 2006.

Disability Pension,
Service Element
34

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Previously, if such an employee had a qualifying service of less than ten years, they would be eligible to receive only the disability element of their disability pension, and not the service element. However, this O.M. does away with the requirement of ten years of qualifying service and states that any Central Government employee who was boarded out due to an injury/disability attributable to the Government service will be eligible to receive both, the disability element and the service element of their disability pension.

7.
No,12/4/2020-P&PW(C
)-6300 dated 28 July
2020 (available on pg.
no. 18)

This O.M. consolidates instructions for Pension Disbursing Authorities to ensure smooth payment of pension/family pension to pensioners/family pensioners.

With respect to disbursement of family pension to children of Government employees who have a disability, the O.M. clarifies that if the disability of the child is temporary, the guardian of such a child shall produce a disability certificate once every five years, as long as the child continues to have the disability. The child with disability is also required to self-certify every year that they have not started earning a livelihood.

Pension Disbursing
Authorities, Child with
Disability, Family Pension

8.

NO.1/6/2017-P&PW (F)

dated 10 October 2018

This O.M. clarifies the procedure for calculation of disability pension and family pension under the CCS (Extraordinary Pension) Rules, 1939 for pre-1996 and pre-2006 disability pensioners and family pensioners. The revision now includes a Non-performing Allowance as part of the disability pension and family pension covered under the CCS (Extraordinary Pension) Rules, 1939 to retired Medical Officers.

Retired Medical Officers,

Non-performing

Allowance

9.

NO.1/4/2016-P&PW (F)

dated 12 October 2017

The O.M. revises the disability pension and family pension for pre-2016 pensioners under the Civil Services (Extra Ordinary Pension) Rules, 1939, in Pre-2016 Disability

Pensioners, Disability

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accordance with the recommendations of the 7th Central Pay Commission.

The O.M. includes revisions to the disability and family pensions based on the 7th Central Pay Commission pay matrix and details the revised pension rates.

This applies to pensioners who retired or died before 2016. Further, the revision is not subject to the maximum pension limits, and the changes apply to various government employees, including those under the NPS.

Pension, Family Pension

10. NO.1/4/2017-P&PW (F)

Dated 2 August 2017

(available on pg. no. 32)

This O.M. reflects the recommendation of 7th Central Pay Commission to increase the Constant Attendant Allowance for employees with disabilities, to INR 6750 per month from INR 4500 per month. The Constant Attendant Allowance is granted to pensioners who retired from Government service and were eligible for disability pension under the CCS (Extraordinary Pension) Rules, 1939. Such Constant Attendant Allowance is provided to pensioners with 100% disability (where the individual is completely dependent on somebody else for day-to-day function) and is paid in addition to the disability pension.

Constant Attendant

Allowance, Disability

Pension

11. NO.1/4/2016-P&PW (F)

dated 2 August 2017

This O.M. issues a clarification on the quantum of disability pension/family pension under CCS (Extraordinary Pension) Rules, 1939, in order to implement the recommendations of the 7th Central Pay Commission.

It clarifies that the disability pension would continue to be calculated in

accordance with Schedule II of CCS (Extraordinary Pension) Rules, 1939. However, the minimum disability pension with effect would be INR 18,000 per month, with effect from 1 January 2016 for all categories of employees with disabilities.

Minimum Disability

Pension

12.

No. I/4/2016-P&PW(F)

This O.M. issues a clarification on the issue of upper ceiling for disability

Upper Ceiling of Pension,

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-- p.38 --

dated 11 November

2016

pension and family pension. As per OM No. 38/37/2016-P&PW(A)(ii) dated 4 August 2016 issued by the DoPPW, the upper ceiling of disability pension and family pension was indicated to be 50% and 30% respectively of the highest pay in the Government, ie. INR 2,50,000.

However, through the present O.M., the DoPPW has clarified that this ceiling of disability pension/family pension is applicable only in the case of pension drawn under the CCS (Pension) Rules, 1972 and will not apply in the case of disability pension/family pension under CCS (Extraordinary Pension) Rules, 1939. Under the latter rules, the calculation of disability pension/family pension includes a 'disability element', in addition to the 'service element', and as such the upper ceiling of disability pension and family pension is not applicable.

Pension Calculation

13. NO.45/3/2008-P&PW

(E) dated 8 August 2016

The O.M. revises the disability and family pensions for pre-2006 pensioners under the CCS (Extraordinary Pension) Rules, 1939. Previously, the service element of disability pension was available only to pensioners who had completed 33 years of service. This requirement is now removed for pre-2006 disability pensioners, making them eligible to receive the revised disability pension without pro-rata reduction, and arrears payable from 1 January 2006.

Pre-2006 Disability

Pensioners

14. No.1/18/200 1 -

P&PW(E)(Vol.II) dated

27 January 2016

The DoPPW has issued this O.M. to answer the clarifications sought by the Ministry of Railways regarding grant of family pension to a Government employee's child or sibling with disability. It clarified that non-intimation of the disability of the child/sibling to the Pension Sanctioning Authority in the lifetime of the Government employee does not make a child/sibling ineligible for family pension.

Family Pension, Death of

Pensioner

-- p.39 --

It further clarified that a disability certificate issued for the child/sibling after the death of the employee/pensioner for a disability which existed before their death may be accepted by the Pension Sanctioning Authority if they are satisfied that:

- (i) it renders the child or sibling unable to earn a living,
- (ii) the child/sibling had that disability on the date of death of the pensioner/employee.

Further, the O.M. reiterates that there is no requirement of obtaining a fresh disability certificate specifically for the family pension if the child/sibling already has a permanent disability certificate issued by the authorised medical authority.

15. Gazette Notification

G.S.R. 141 dated 22

September 2022

This notification amended the General Provident Fund (Central Services) Rules, 1960.

The amendment makes the following changes to the payment of provident fund for persons with disabilities:

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Amendment to Sub-rule (1) of Rule 12 allows the Head of Office to approve the payment of an advance to any subscriber to cover costs associated with illness (confinement) or disability, including, if required, travel expenses for the subscriber, their family, or any person who is dependent on them.

-

Amendment to Sub-rule (1) of Rule 15 allows the Head of Department to approve withdrawals for covering costs associated with an illness (confinement) or disability, including, if required, travel expenses for the subscriber, their family, or any person who is dependent on them.

Provident Fund,
Advances, Travel
Expenses

16. Gazette Notification

This notification amended Rule 38 of the CCS (Pension) Rules, 1972. It Disability Pension, Invalid

38

-- p.40 --

G.S.R. 12(E) dated 04

January 2019

introduces changes related to disability and invalidity pensions for government employees. The amendment specifies that if a government employee acquires a disability, their case will be governed by Section 20 of the RPWDA, provided they submit a disability certificate from a competent medical authority.

Further, it clarifies that if Section 20 of the RPWDA is not applicable and the employee retires due to bodily or mental infirmity, they are still eligible for

invalid pension under Rule 49 of the CCS (Pension) Rules, 1972. This applies even if the employee has less than 10 years of qualifying service, as long as they were medically examined and declared fit for service when appointed and meet all other conditions for invalid pension.

These amendments align the CCS (Pension) Rules, 1972 with the provisions of the RPWDA, and ensure fair pension benefits for government employees retiring due to disability or infirmity.

Pension

E) Department of Public Enterprises (DoPE)

The DoPE serves as the central coordinating agency for the formulation of policies and guidelines related to the functioning, performance, and governance of public sector enterprises in India. With respect to persons with disabilities, the DoPE plays a crucial role in ensuring that public sector enterprises implement inclusive policies that support the recruitment, retention, and welfare of employees with disabilities. It helps formulate guidelines to promote equal opportunities and non-discriminatory practices within public sector enterprises, contributing to the broader mission of responsible and inclusive governance.

Note: In addition to the orders/circulars/notification of the DoPE itself, often the orders/notifications/circulars of the DoPT are also required to be adopted and implemented by the DoPE (instances of which are indicated in the summaries of the DoPT orders/notifications/circulars above). This ensures that public sector enterprises follow inclusive policies regarding the recruitment, retention, and welfare of persons with disabilities.

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S. No.

O.M./Notification No.

Right/Provision

Tag

1.

DPE-GM-0043/2014-G

M (FTS-1899) dated 5

April 2023

This O.M. emphasises on the strict adherence to provisions and guidelines regarding the transfer of employees with disabilities in CPSEs. It has been issued by the DoPE pursuant to an order of the Office of the Court of Chief Commissioner for Persons with Disabilities (Case No./ F.No.: 13604/1022/2022 dated 07 February 2023), which lays down the relevant legal provisions and benefits for employees with disabilities, which protect them from arbitrary transfers, ensuring reasonable accommodations and barrier-free environments.

Key highlights include:

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Transfer Policies: Divyang employees should be exempted from routine transfers, and if transferred, they should preferably remain close to their current location or native place.

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Promotion-Related Transfers: Employees should not be transferred during

promotion if a vacancy exists in their current branch or town. If relocation is necessary, it should be to the nearest possible location.

-

Caregiver Exemptions: Employees who are caregivers to disabled dependents are also protected from routine transfers under specified conditions.

The DoPE directs all CPSEs to comply with these guidelines, ensuring a supportive work environment for employees with disabilities.

Transfer Policies,
Promotion, Caregivers of
Persons with Disabilities
40

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2.

O.M. No.
W-02/0015/2021-DPE
(WC) dated 21
February 2022

This O.M. addresses the inclusion of additional/double Transport Allowance for persons with disabilities, in the list of allowances which are exempt from an upper ceiling.

In the matter of Sh. K. Shiva Reddy & Ors. (Case No. 11927/1024/2020 dated 12 February 2021), the office of Chief Commissioner for Persons with Disabilities recommended that the DoPE should amend its previous O.M. (No. W-02/0030/2018-DPE (WC) dated 10 July 2018) to exempt transport allowance from the ceiling of 35% of basic pay for perks and benefits for persons with disabilities.

The O.M. states that following consultation with the DoE, it was decided that:

1. Employees with disabilities are entitled to double the transport allowance to facilitate their commute.
 2. The additional transport allowance for employees with disabilities will be excluded from the 35% ceiling on perks and benefits
- CPSEs are instructed to review and fix transport allowance in consultation with their administrative ministries.

In order to implement this O.M., the DoPE issued another O.M. No.W-02/0015/2021-DPE (WQ-GL-V/2023 dated 16 March 2023 to clarify that the exemption from the upper limit for travel allowance for employees with disabilities will be in effect from 21 February 2022.

Transport Allowance,
Ceiling
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3.

O.M. No.
6(9)/2014(SC/ST
Cell)/FTS-1955 dated
23 February 2016

This O.M. of the DoPE directs CPSEs to conduct accessibility audits of their

infrastructure and to make their built up environment accessible to persons with disabilities.

CPSEs are directed to increase accessibility through ramps in common/public buildings, accessible parking, accessible toilets, Braille symbols and auditory signals in elevators etc.

Accessibility Audit, Built
up Environment

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